

Brij Kishor v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 April 2022 · WRIT - C No. - 7634 of 2022 · **Liberty to file a Para 6.8 objection; merits left open.**

HEADNOTE

A writ seeking service of a penalty pre-assessment and an opportunity to object under section 126(3) of the Electricity Act, 2003 was disposed of without any opinion on merits, with liberty to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided within the next four weeks by a reasoned and speaking order after hearing.

FACTUAL SUMMARY

Brij Kishor sought a mandamus that respondent no. 4 serve the pre-assessment of a penalty, allow an objection under section 126(3) of the Electricity Act, 2003, and not recover the amount in the recovery certificate without that pre-assessment. He also asked that his notice of 25 October 2021 and reminder of 5 January 2022 be considered. Counsel for respondent nos. 3 and 4 stated, on instructions, that an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 could be filed and would be decided by the competent authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection under paragraph 6.8

HOLDING

Without expressing any opinion on the merits, the writ is disposed of with liberty to the petitioner to file, within four weeks and with a copy of the order, an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 4. If the objection is filed in time, that authority shall decide it within the next four weeks, in accordance with law, by a reasoned and speaking order after affording a reasonable opportunity of hearing. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ was disposed of without any opinion on merits, by giving liberty to file an objection under paragraph 6.8 before the competent authority, to be decided by a reasoned and speaking order after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PENALTY PRE-ASSESSMENT AND OF THE RECOVERY CERTIFICATE

The Court recorded that it expressed no opinion on merits and left the objection to be decided by the competent authority in accordance with law. ¶ 1

NOT DECIDED — WHETHER RECOVERY UNDER THE RECOVERY CERTIFICATE IS RESTRAINED PENDING THE OBJECTION

The prayer against recovery without a pre-assessment was not granted; the order is silent on any stay. ¶ 1